



CHAPTER xlix.

An Act to confer further powers on the urban district council of Long Eaton in regard to their electricity and water undertakings lands and other matters to make further and better provision for the improvement health and local government of their district and for other purposes. [1st August 1946.]

WHEREAS the urban district of Long Eaton (in this Act referred to as "the district") is under the government of the urban district council of Long Eaton (in this Act referred to as "the Council"):

And whereas the Council are the undertakers for the supply of electricity under the provisions of the Long Eaton Electric Lighting Order 1900 (which was scheduled to and confirmed by the Electric Lighting Orders Confirmation (No. 4) Act 1900) and under the provisions of that Order and the Long Eaton Electricity (Extension) Special Order 1926 are now supplying electricity throughout the district (except the area which was added to the district by the Derbyshire Review Order 1934) and part of the parish of Toton in the rural district of Stapleford and it is expedient that further powers should be conferred upon the Council with respect to their electricity undertaking:

^{63 & 64 Vict.}
^{c. xlviii.}

And whereas it is expedient that further powers should be conferred upon the Council with respect to their water undertaking:

And whereas it is expedient that further and better provision should be made for the health good government and improvement of the district and that the powers of the Council in regard thereto should be enlarged as in this Act provided:

And whereas it is expedient that the provisions in regard to the finances of the Council which are contained in this Act should be made:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of sections 253 254 and 255 of the 23 & 24 Geo. 5. Local Government Act 1933 have been observed:
c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Long Eaton Urban District Council Act 1946.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Electricity.
- Part III.—Water supply.
- Part IV.—Streets and buildings.
- Part V.—Sewers drains &c.
- Part VI.—Infectious disease and sanitary provisions.
- Part VII.—Human food.
- Part VIII.—Public buildings parks &c.
- Part IX.—Lands.
- Part X.—Financial provisions.
- Part XI.—Miscellaneous.
- Part XII.—General.

Incorporation of Lands Clauses Acts. 8 & 9 Vict. c. 18.

3. The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART I.
—cont.
Interpretation.
26 Geo. 5. &
1 Edw. 8. c. 49.

(2) In this Act unless the subject or context otherwise requires—

“ The district ” means the urban district of Long Eaton;

“ The Council ” means the urban district council of Long Eaton;

“ The electricity undertaking ” means the electricity undertaking of the Council for the time being authorised;

“ The electricity limits ” means the area within which the Council are for the time being authorised to supply electricity;

“ The water limits ” means the limits within which the Council are for the time being authorised to supply water;

“ The clerk ” “ the surveyor ” “ the medical officer ” and “ the sanitary inspector ” mean respectively the clerk the surveyor the medical officer of health and any sanitary inspector of the Council;

“ The Minister ” means the Minister of Health;

“ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and Part II of the Town and Country Planning Act 1944;

“ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same;

“ Sunday school ” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

“ Child ” means a person under the age of sixteen years;

“ Food ” has the meaning assigned to it by section 100 of the Food and Drugs Act 1938;

“ Daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the district;

9 & 10 Geo. 5.
c. 57.
7 & 8 Geo. 6.
c. 47.
38 & 39 Vict.
c. 55.

1 & 2 Geo. 6.
c. 56.

PART I.
—cont.38 & 39 Vict.
c. 83.

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“ Authorised security ” means any mortgage stock bond or other security which the Council are for the time being authorised to grant create or issue or upon or by means of which the Council are for the time being authorised to raise money;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Local Government Act 1933.

PART II.

ELECTRICITY.

Supply to
premises partly
without
electricity
limits.

5. The Council may supply electricity to any house or building which is partly within and partly outside the electricity limits in the same manner as if those premises were wholly within such limits:

Provided that the Council shall not supply electricity under this section to any such house or building within the limits of any other authorised electricity undertakers without the consent of such undertakers which consent shall not be unreasonably withheld Any question as to whether any such consent is unreasonably withheld shall be determined by the Electricity Commissioners.

6.—(1) Where the charges made by the Council for electricity supplied by them for one purpose are less than the charges made by them for electricity supplied for another purpose electricity supplied by the Council for the first-mentioned purpose shall not without the consent in writing of the Council be used (whether after transformation or conversion or not) for the last-mentioned purpose and if any person to whom any electricity is supplied uses it or suffers it to be used in contravention of the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

PART II.

—cont.

Use for one purpose of electricity supplied for another purpose.

(2) Where a person is convicted of an offence under this section in respect of the use of electricity for any purpose the court may direct that all or any portion of the electricity which has been supplied to him by the Council within one year previous to the date when the proceedings were instituted at a rate of charge lower than the rate of charge appropriate for electricity supplied for the said purpose shall be charged for at the last-mentioned rate.

(3) For the purposes of this section electricity shall not be deemed to be used for lighting purposes by reason only that it is used for the purposes of some electrical apparatus which contains a lamp if the purposes of the apparatus as a whole are not lighting purposes.

7.—(1) The powers conferred on the Council by section 24 of the Electric Lighting Act 1882 of entering premises shall be extended as follows:—

Further powers as to entry upon premises.

45 & 46 Vict. c. 56.

(a) The premises which may be entered shall include all premises in the electricity limits in which electric fittings are being or have been installed with a view to taking a supply of electricity from the Council;

(b) The purposes for which premises may be entered shall include the following purposes that is to say the inspection of all meters and electric fittings on the premises whether belonging to the Council or not the ascertainment of whether or not there is or has been any contravention of any of the Acts or Orders applying to the Council or of any regulation or byelaw made thereunder and (where the Council are authorised under the provisions of any such Act Order regulation or byelaw to cut off the supply of electricity to the premises) the cutting off of such supply.

The Council shall not have any power of entry into any such premises except through an officer duly authorised by the Council who shall if so required produce his authority.

PART II.
—cont.

(2) Any person who shall refuse to admit any such officer of the Council to any premises which they are entitled to enter in pursuance of the said section 24 as amended by this section or shall hinder any such officer from entering any such premises or from exercising the powers conferred by the said section as so amended shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section "electric fittings" includes electric lines meters accumulators fittings works and apparatus for the supply of electricity.

(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a house) belonging to and used by any railway company for the purpose of their railway and forming part of any station or goods depot.

Agreements
for supply of
electricity.

8. Notwithstanding anything in any Act or Order relating to the Council or the electricity undertaking the Council on the one hand and any authority company body or person (other than authorised distributors) to whom the Council are authorised to supply electricity on the other hand may enter into and carry into effect contracts or agreements for or with respect to the supply of electricity by the Council to such authority company body or person and at such price and on such terms and conditions as may be agreed and the Council may supply electricity accordingly Provided that the Council shall not in making any such contract or agreement show any undue preference to any such authority company body or person.

Provisions as
to supply of
electricity by
agreement.
62 & 63 Vict.
c. 19.

9. A consumer supplied with electricity by the Council under the terms of any agreement shall be deemed to be a person to whom the Council may be and are required to supply energy within the meaning of section 30 of the schedule to the Electric Lighting (Clauses) Act 1899 and—

- (a) the provisions of that section shall apply to the supply afforded by the Council under such agreement;
- (b) any failure on the part of the Council to supply energy to such consumer under the agreement shall not render them liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Council:

PART II.
—cont.

- (i) the provisions of this section shall not operate to deprive any consumer of electricity supplied by the Council under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions; and
- (ii) nothing in this section shall apply in relation to any agreement which expressly excludes the application of this section.

11. The Council may refuse to supply electricity to any person from whom payment for the supply of electricity or meter rent is for the time being in arrear (not being the subject of a bona fide dispute) whether the payment be due to the Council in respect of the premises for which a supply is demanded or in respect of other premises.

12. If the Council commence proceedings against any consumer for the summary recovery of any sum due for a supply of electricity any other sum due or payable to the Council by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of electricity or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of electricity provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

13.—(1) Notwithstanding anything in section 7 of the Gasworks Clauses Act 1847 the Council may with the consent in writing of the owner of any building or any bridge over any street attach thereto such brackets electric lines and attachments (in this section called "attachments") as may be required for the purposes of the electricity undertaking.

(2) Where in the opinion of the Council any consent under subsection (1) of this section is unreasonably withheld they may make complaint to a court of summary jurisdiction who

PART II.
—cont.

may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as they may think fit or disallow the attachments.

(3) The provisions of subsection (2) of this section shall not apply in relation to—

- (a) any building forming part of an aerodrome; or
- (b) any building which is designated in a list compiled or approved by the Minister of Town and Country Planning as being a building of architectural or historic interest or any building which the owner thereof alleges to be a building of architectural or historic interest; or
- (c) any building or bridge owned by any highway authority railway or canal company or gas undertakers;

but if in the opinion of the Council any consent under subsection (1) of this section is unreasonably withheld in relation to any such building or bridge they may appeal in the case of a building or bridge owned by any highway authority or railway or canal company to the Minister of Transport and in any other case to the Minister of Fuel and Power and the Minister of Transport or the Minister of Fuel and Power as the case may be may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as he thinks fit or disallow the attachments.

(4) Where any attachments have been affixed to a building or bridge under this section and the person who gave the consent or who was the owner when the order allowing the attachments was made ceases to be the owner of the building or bridge the subsequent owner may give to the Council notice in writing requiring them to remove the attachments and subject to the provisions of this subsection the Council shall within three months after the service of the notice remove the attachments:

Provided that the provisions of subsection (2) and subsection (3) of this section shall apply in relation to any such notice as they apply in relation to a refusal of a consent to the making of attachments.

(5) Where any attachments have been made under this section to any building or bridge the owner of the building or bridge may require the Council at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building or bridge.

(6) In this section—

PART II.
—cont.

The expression “ owner ”—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired means the occupier of the building;

(b) in relation to a building occupied under any other tenancy means the person who is receiving the rack rent or who would receive the rack rent if the building were let at a rack rent;

(c) in relation to a building forming part of an aerodrome means (notwithstanding anything in this subsection) the person having control of the aerodrome;

The expression “ rack rent ” means in relation to a building a rent which is not less than two-thirds of the full net annual value of the building;

The expression “ aerodrome ” means an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating the same. 10 & 11 Geo. 5. c. 80.

14. In any case in which the proper and efficient supply of electricity necessitates the substitution of a new cable or other work situate in or upon the private property of a consumer the Council after giving forty-eight hours' notice in writing to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which such cable or work is laid or fixed may enter such house building or land between the hours of nine in the morning and four in the afternoon or with the authority in writing of a justice at any other time for the purpose of effecting such substitution repairing all damage caused by such entry or substitution. Power of entry for substitution of cables &c.

15. For the purposes of section 13 of the Electric Lighting Act 1882 and section 12 of the schedule to the Electric Lighting (Clauses) Act 1899 in their application to the Council a county council shall be deemed to be a local authority. Removal of restriction on breaking up streets.

16.—(1) If the owner or occupier of any premises erected or in process of erection within the electricity limits on land abutting on any street laid out as such but not dedicated to public use or if so dedicated not repairable by the inhabitants at large applies to the Council for a supply of electricity to those premises then— Power to break up private streets.

(a) so much of any Act or Order applying to the Council as requires the consent of the person by whom the street is repairable to the breaking up by the Council of the street shall not have effect in relation to the street;

PART II.
—cont.

- (b) the Gasworks Clauses Act 1847 in its application to the Council shall have effect in relation to the land comprised in the street as if section 7 thereof had been excepted from incorporation with the Acts and Orders applying to the Council; and
- (c) except in the case of such streets as are referred to in subsection (2) of this section the authority who would be responsible for the maintenance and repair of the street if it were repairable by the inhabitants at large shall have the like rights under section 15 of the schedule to the Electric Lighting (Clauses) Act 1899 as are thereby conferred on the person by whom the street is repairable.

(2) Nothing in this section shall authorise the breaking up by the Council of any street which is repairable by a railway or canal company unless the consent in writing of such company is obtained by the Council but such consent shall not be unreasonably withheld.

(3) Any question arising under subsection (2) of this section as to whether or not a consent is unreasonably withheld shall be determined by the Minister of Transport.

Penalty for
interference
with works.

17. If any person without lawful excuse (the proof whereof shall lie on him) shall wilfully interfere with any electric line or other work or apparatus used for or in connection with the supply of electricity by the Council or do or cause to be done anything which is calculated to interfere with or damage any such work or apparatus he shall for every such offence (without prejudice to any other liability or cause of action which may arise out of or by reason of such act) be liable to a penalty not exceeding five pounds.

Interference
with works
with intent to
cut off supply
of electricity.

18.—(1) Any person who unlawfully and maliciously cuts injures or tampers with any electric line or work of the Council with the intent to cut off or injuriously affect the supply of electricity by the Council shall be guilty of a misdemeanour and be liable on conviction on indictment to imprisonment for any term not exceeding two years but nothing in this section shall exempt the person from any proceeding for any offence which is punishable under any provision of the Electricity (Supply) Acts 1882 to 1936 or of the Electric Lighting (Clauses) Act 1899 or under any other Act or the common law but so that no such person be punished twice for the same offence.

(2) The Electric Lighting Act 1882 in its application to the Council shall be read and have effect as if section 22 of the said Act were hereby repealed.

19.—(1) The provisions of section 38 of the Gasworks
Clauses Act 1871 (incorporated with the Electric Lighting
Act 1882) shall apply to any person who wilfully fraudulently
or by culpable negligence injures or detaches or suffers to
be injured or detached any of the sealing or locking devices
attached to any sealed or locked receptacle meter or apparatus
inserted by the Council in any electric line within a con-
sumer's premises or opens or suffers to be opened any such
sealed or locked receptacle meter or apparatus.

PART II.

—cont.

Protection
of seals &c.
belonging to
Council.
34 & 35 Vict.
c. 41.

(2) If any person accidentally injures or detaches or suffers
to be injured or detached any such sealing or locking device
as aforesaid he shall within forty-eight hours of such injury
or detachment give notice in writing thereof to the Council
and any person who fails to comply with the provisions of this
subsection shall be liable to a penalty not exceeding five
pounds.

20.—(1) The Council may for the purpose of preventing
fire in or any injury to any building or premises supplied or
proposed to be supplied with electricity by them or injury
to any person make byelaws—

Byelaws as
to wires
apparatus
and fittings.

(a) with respect to the nature material workmanship and
mode of arrangement of the wires apparatus and
fittings in any such building or premises and
required or used for the purpose of such supply; and

(b) with respect to the charging of accumulators;

and may refuse to supply electricity or cut off and discontinue
the supply of electricity to any building or premises in which
such byelaws are not complied with.

(2) No byelaw made under this section shall apply to or
in respect of any building or premises to which the Factories
Act 1937 applies or to any premises (not being a house)
belonging to a railway company and used by them for the
purposes of their undertaking.

1 Edw. 8. &
1 Geo. 6. c. 67.

21.—(1) Where a meter supplied by the Council is found
on a test to register erroneously to a degree exceeding the
degree permissible as respects meters of the class to which
the meter belongs it shall in the absence of agreement to the
contrary be deemed to have registered erroneously to the
degree so found from the penultimate date on which the
register of the meter was ascertained before the date on which
the meter was tested or removed for the purpose of the test
except in a case where the meter is proved to have begun
to register erroneously as aforesaid on some date after such
penultimate date.

Period of error
in defective
meters.

PART II.
—cont.

(2) The amount of the allowance to be paid to or the surcharge to be made upon such person by the Council shall be paid by or to the Council as the case may be and in the case of a surcharge shall be recoverable in the like manner as charges for electricity are recoverable.

(3) The Council shall notify the consumer at least forty-eight hours in advance of any test of his meter and shall notify the consumer of the result of the test.

(4) Nothing in this section shall affect the rights of the Council under section 38 of the Gasworks Clauses Act 1871 (which relates amongst other things to the injuring of meters).

Fraudulent
abstraction
of electricity.

22. Any person who for the purpose of operating any prepayment meter through which electricity is supplied to him or to premises occupied by him frequently or habitually uses any thing other than the coin of the realm by which such prepayment meter is designed and intended to be operated shall be liable to a penalty not exceeding five pounds.

Minimum
charge for
electricity.

23. The minimum charge per quarter which is specified in the Fourth Schedule to the Long Eaton Electric Lighting Order 1900 as for the time being revised by any order of the Minister of Fuel and Power shall if so required by the Council be paid to them by the occupier of any premises connected to a distributing main of the Council in respect of each quarter of any year during the whole or any part of which quarter such premises are so connected whether electricity has actually been consumed on such premises or not during the currency of such quarter:

9 Geo. 6. c. 58. Provided that nothing in this section shall affect the operation of the Electricity Minimum Charges Orders and General Directions 1942 and 1944 (or any modification thereof) made and given by the Minister of Fuel and Power under regulation 56 of the Defence (General) Regulations 1939 as the said regulation has effect under the Supplies and Services (Transitional Powers) Act 1945.

Notice to
discontinue
supply of
electricity.

24.—(1) A notice to the Council from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

(2) Notice of the effect of this section shall be endorsed on any demand note for electricity.

Service of
electricity
demand notes.
15 & 16 Geo. 5.
c. 90.

25. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with the electricity undertaking.

26. The Council may if they think fit make an allowance by way of discount on all sums of money due to them for the supply of electricity from any person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to that effect shall (if and so long as the Council shall allow such discount) be endorsed on every demand note in respect of such charges. Provided that the Council shall make the same allowance to all consumers under similar conditions.

PART II.
—cont.
Discounts
for prompt
payment.

PART III.

WATER SUPPLY.

27. Within the water limits the Council subject to the provisions of this Act shall continue to have and enjoy and may exercise all the powers rights and authorities and shall be subject to all the obligations of and restrictions on an urban authority under Part IV (Water supply) of the Public Health Act 1936 as amended by section 31 of and the Fourth Schedule to the Water Act 1945.

Council to
have powers
of urban
authority for
supply of
water.
8 & 9 Geo. 6.
c. 42.

28.—(1) Notwithstanding anything in any Act relating to the Council no person shall be entitled to demand or to continue to receive from the Council a supply of water to any habitation to which this section applies unless he has—

Provisions as
to supply to
sheds tents
vans &c.

(a) agreed with the Council to take a supply of water by meter and to pay to them such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the required supply and will cover other standing charges incurred by them in order to meet the possible maximum demand for his habitation and will yield a reasonable return on the cost of the water supplied; and

(b) secured to the reasonable satisfaction of the Council by way of deposit or otherwise payment of such a sum as may be reasonable having regard to his possible maximum demand for water.

The annual sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction whose decision shall be final.

(2) The habitations to which this section applies are tents vans or other conveyances whether on wheels or not and sheds or similar structures not being structures to which the building byelaws of the Council apply.

29.—(1) The Council may allow discounts or rebates in consideration of prompt payment of water rates and charges:

Discount for
prompt pay-
ment of water
rates and
charges.

PART III.
—cont.

Provided that such discounts or rebates shall be at the same rate under like circumstances to all persons and shall not in any case exceed five per centum.

(2) If and so long as the Council allow such discounts or rebates notice of the effect of this section shall be endorsed on every demand note for water rates and charges.

(3) This section shall not apply in any case where a discount is payable under subsection (2) of section 129 of the Public Health Act 1936.

Collection of
water rate &c.

30. Any water rate or charge payable to the Council in respect of premises within the district may be collected together with the general rate.

Recovery of
sums due for
fittings &c.

31. If the Council commence proceedings against any consumer for the summary recovery of any sum due for a supply of water any other sum due or payable to the Council by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of water or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of water provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

Service of
demand notes.

32. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with the water undertaking of the Council.

PART IV.

STREETS AND BUILDINGS.

Adjustment
of boundaries
of estates.

33.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) are submitted to the Council for approval the Council may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and

conditions upon which such provision is to be made shall failing agreement between the Council and the respective persons interested in such estate or lands be determined on the application of the Council or any such person by an arbitrator to be appointed by the Minister and the Council may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default or agreement be determined by arbitration as aforesaid:

Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Council.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Council may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Council may think reasonable.

34.—(1) In any case in which the forecourt of any premises adjoining a street or any steps or projection placed in any such forecourt or any goods placed therein whether for sale or not is or are a source of danger obstruction or inconvenience Fencing of forecourts.

PART IV.
—cont.

to the public the Council may require the owner of the premises well and sufficiently to fence such forecourt from the street.

(2) Any person who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Provision as
to forecourts.

35.—(1) If the Council shall by resolution determine that any stall structure or other erection on any forecourt is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period (not being less than seven days) as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Byelaws as to
alteration of
streets.

36. The Council may make byelaws to prevent streets which have been laid out or constructed in accordance with byelaws made under the Public Health Acts from being altered in such a way that if at first so laid out or constructed they would have contravened the byelaws.

Compensation
for injuring
lamps &c.

37. Every person who negligently breaks throws down or otherwise damages any public lamp or lamp post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin or life-saving apparatus or any other property of the Council shall make full compensation to the Council for the damage done and such compensation to an amount not exceeding twenty pounds may (without prejudice to any other right or remedy of the Council) be recovered summarily as a civil debt.

Signs over
streets.

38.—(1) In this section "sign" means any banner streamer notice board sign or lettering for the purposes of advertisement or announcement (including the supports thereof) which is suspended or extends for more than two feet over any street or which extends for more than six inches over any street and is more than two feet six inches in height from the top to the bottom thereof.

(2) (a) If it appears to the Council that any sign which is placed over any street at the date of the passing of this Act is a source of danger or objectionable by reason of its size

construction or situation or an injury to the amenities of the street over which it is placed they may by notice in writing require the owner of or person responsible for the placing of such sign to remove it or to comply with such conditions as may be specified in the notice within such period not being less than seven days as may be specified in the notice.

(b) For a period of two years from the passing of this Act the foregoing provisions of this subsection shall not apply to any sign which was in use on the first day of November one thousand nine hundred and forty-five.

(3) (a) After the date of the passing of this Act no person shall without the consent of the Council place any sign over any street.

(b) The consent of the Council under this subsection shall not be withheld except on the ground that in their opinion the sign would be a source of danger or objectionable by reason of its size construction or situation or an injury to the amenities of the street and such consent may be given subject to such conditions as the Council may think fit.

(4) Any person who (a) neglects or refuses to comply with the requirement of any such notice as is referred to in subsection (2) of this section or (b) after the date of the passing of this Act places any sign over any street without the consent of the Council or without complying with any conditions attached to any such consent shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings and the Council may themselves remove any such sign and any expense incurred by them in so doing may be recovered by them from such person.

(5) The provisions of this section shall not apply to any sign erected by a railway company over any street belonging to such company and forming part of any railway station or depot of such company.

39.—(1) Any person erecting setting up or placing any Window blind shade covering or awning over any footway shall so erect set up or place the same that no part thereof shall project over any part of the footway which is less than one foot six inches from the outer edge of the kerb of such footway. blinds &c.

(2) Every such blind shade covering or awning shall be constructed and maintained so as to secure in accordance with the requirements of the Council the safety and convenience of the public.

(3) Every person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

PART IV.

—cont.

Provisions as
to tents vans
&c.51 & 52 Vict.
c. 52.

40.—(1) Any tent van shed or similar structure standing upon land abutting upon a street shall for the purpose of section 3 of the Public Health (Buildings in Streets) Act 1888 in its application to the district be deemed to be a house or building within the meaning of those words where they first occur in the said section.

(2) It shall not be lawful without the written consent of the Council to place any tent van shed or similar structure used for human habitation so as to stand upon any square court alley or passage to which the public have access or which is required by law to be left free from obstructions.

(3) Any person who offends against the provisions of subsection (2) of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

As to
hoardings
and similar
structures.

41.—(1) (a) No wall fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street shall be erected or brought forward on any land in any street—

(i) beyond any building line prescribed by the Council in respect of the land under the provisions of any Act; or

(ii) if there be no such line beyond any line which is enforceable by the Council for buildings under subsection (2) of section 140 of the Housing Act 1936; or

(iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Council may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with

26 Geo. 5.
& 1 Edw. 8.
c. 51.

those provisions and the Council shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

PART IV.
—cont.

(b) Any person who shall neglect or refuse to comply with a notice from the Council given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may at their own expense take down or remove and if required by the owner or occupier shall re-erect so as not to contravene the provisions of subsection (1) of this section any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

(4) The provisions of this section shall not apply to any wall erected on land belonging to a railway or canal company so long as such land is used by such company primarily for the purposes of their railway or canal as the case may be.

42.—(1) For the purpose of preserving the amenities of the district it is hereby enacted that it shall not be lawful after the passing of this Act to erect in or within fifteen feet of any street in the district any hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Council may determine.

Restrictions on
advertisement
hoardings.

(2) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The consent of the Council under this section shall not be required for a hoarding or similar structure erected within any railway station or upon any property of a railway or canal company for the purposes of such company except in so far as such hoarding or similar structure fronts upon a street repairable by the inhabitants at large.

PART IV.

—cont.

As to erection
of hoardings
&c. at street
corners.

43.—(1) Before placing or erecting any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street the person proposing to place or erect such hoarding wall or fence shall give notice of his intention so to do to the Council and such notice shall be accompanied by plans and particulars of the hoarding wall or fence proposed so to be placed or erected.

(2) If the placing or erection of such hoarding wall or fence would constitute a danger to the traffic in the streets upon adjoining or near to which the same is proposed to be placed or erected by obstructing the view of any foot passenger or the driver of any vehicle in a street of vehicular or pedestrian traffic, the Council may within one month of the receipt of the said notice prohibit such placing or erection or may allow the same subject to such conditions or modifications of the said plans and particulars as they may think fit. If within one month of the receipt of the said notice the Council shall not have prohibited such placing or erection or allowed the same subject to a condition or to a modification of such plans or particulars they shall be deemed to have allowed such placing or erection.

(3) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Council may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(4) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

15 & 16 Geo. 5. c. 68.
25 & 26 Geo. 5. c. 47.
(5) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925 or by section 1 or section 2 of the Restriction of Ribbon Development Act 1935.

Repair of
hoardings
&c.

44.—(1) The Council may by notice in writing require—

(a) the owner of any hoarding wall or similar structure used for advertising purposes to maintain the same in good order and condition;

(b) the person using any hoarding wall or similar structure for advertising purposes to maintain any advertising matter thereon in good order and condition.

(2) If such owner or other person shall neglect or refuse to comply with any such notice the Council may carry out such alterations or repairs as may be reasonably necessary and recover summarily as a civil debt from such owner or other person any expense incurred by them in so doing.

PART IV.
—cont.

45.—(1) Where by reason of any improvement made by the Council in the district any land shall become land which adjoins or abuts on any street the following provisions shall apply:—

Elevation of
buildings
erected on
front lands
to require
approval.

(i) If the owner lessee or occupier of any such land shall construct—

(a) any door or entrance in an existing building communicating with that street; or

(b) any wall or fence by the side of that street; he shall construct the door entrance wall or fence in such position and in accordance with such elevations as may be approved by the Council;

(ii) If the Council within one month after particulars of position and elevations shall have been submitted to them under this section shall have failed to notify their determination in writing to the person submitting the same the Council shall be deemed to have approved of the position and elevations.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Council shall make compensation to the owner of any land for any loss or damage he may suffer by reason of the setting back or bringing forward of any wall or fence under the provisions of this section.

(4) This section shall not apply to any street which for the time being is subject to restrictions under the Restriction of Ribbon Development Act 1935.

46.—(1) The Council may by order prohibit or restrict—

(a) the erection of buildings intended or adapted for use as houses on any land which in their opinion is liable to flooding; or

(b) the erection of houses on land which in their opinion would by reason of the nature of the subsoil involve danger or injury to health.

Prohibition
on use of
unsuitable
land for
erection of
houses.

(2) Before any order made under this section shall come into force the Council shall submit the order to the Minister for his approval and shall give notice of the proposals of the

PART IV.
—cont.

order to the owner of any land affected by the order and by advertisement in a local newspaper circulating in the district and in the London Gazette and in such other manner (if any) as the Minister may direct.

The said notice shall name a place where copies of the order can be obtained free of charge and shall state a date (not being less than twenty-one days from the date of the notice) by which and the manner in which any person aggrieved by the order may make representations thereon to the Minister and that any such person shall at the same time send a copy of his representations to the clerk.

(3) The Minister shall consider any order submitted to him by the Council and any representations thereon which may be duly made and may approve the order submitted to him with or without modifications or may disapprove the order.

(4) Before approving any such order the Minister may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held.

(5) The Council shall give at least fourteen days' notice of the intention to hold such local inquiry with particulars of any proposed order by advertisement in a local newspaper circulating in the district and shall also give similar notice in writing to each person who has duly made any representation and has not withdrawn the same.

(6) The order shall take effect as approved by the Minister and shall come into force on a date to be fixed by him.

(7) The Council shall give notice of the provisions of any order approved by the Minister under this section by advertisement in a local newspaper circulating in the district and otherwise in such manner as may be directed by the Minister.

(8) Any person who commits any breach of any order which has come into force under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(9) If at any time it appears to the Council that by reason of the execution of works of drainage or for any other reason an order made under this section may properly be revoked in whole or in part or any conditions imposed by such an order may properly be relaxed the Council may by order revoke the original order in whole or in part or relax any conditions imposed thereby.

The Council if requested by the owner of any land affected shall take into consideration the question of making an order under this subsection and if any difference arises between the Council and an owner as to whether the original order ought to be revoked in whole or in part or whether the conditions thereof ought to be relaxed and if so to what extent that difference may be referred by either party to the Minister and the Minister whose decision shall be final may make any order in the matter which the Council might have made.

47.—(1) Every house erected after the passing of this Act shall be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Food storage accommodation to be provided.

(2) Every existing house and every house the erection of which was commenced but not completed before the passing of this Act shall where reasonably practicable be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such house which can reasonably be so provided but which is not so provided after one month's notice from the Council requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

48. It shall be lawful for a court of summary jurisdiction upon complaint by the Council in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of a washhouse or outbuilding forming part of or in proximity to a house in the district is a nuisance to any of the inhabitants of the district to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding twenty pounds and any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. Power to order alteration of chimneys.

49.—(1) Every chimney erected in the district after the passing of this Act for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any buildings used for manufacturing or other purposes shall within such time as may be specified in that behalf in a notice in writing given by the Council to the Height of chimneys.

PART IV.
—cont.

owner of such chimney be raised to such height measured from the level of the centre of the street nearest thereto as the Council shall reasonably require having regard to the use of such chimney the position of houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height and the Council may if they think fit contribute towards the cost of raising the chimney to comply with any such requirement:

Provided that before exercising the powers conferred by this section in relation to any chimney situated within one mile of an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating that Act the Council shall obtain the consent of the Minister of Civil Aviation.

(2) Any person who shall offend against any provision of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Sanitary
conveniences
for workmen.
1 Edw. 8. &
1 Geo. 6. c. 67.

50.—(1) The contractor engaged in or upon the construction or reconstruction of any work not being a work to which section 107 or section 108 of the Factories Act 1937 applies shall where practicable and if required by the Council provide to the reasonable satisfaction of the Council and until the completion of any such construction or reconstruction maintain such water or other closets and urinals in or in connection with such work as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Further
powers as to
future line of
street.
15 & 16 Geo. 5.
c. 71.

51.—(1) The Council may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 of the Public Health Act 1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line.

(2) The owner may and if so required by the Council shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Council under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Council under this section the Council shall make compensation to any owner lessee or tenant of any such building or erection for any loss or damage sustained by him in consequence of such requirement being complied with.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

52.—(1) Every person who intends to lay out a new street shall in addition to the information required to be supplied to the Council by virtue of any enactment or byelaw with respect to streets and buildings from time to time in force in the district distinctly define and mark on a plan drawn to such scale as the Council may require and to be prepared and submitted by such person to the Council for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line") and the Council shall be deemed to have approved any building line unless within one month after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

(2) The Council may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them or by any highway authority) already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Council or before the expiration of the one month aforesaid without their approval nor without the approval of the Council beyond or in front of the building line approved or prescribed by the Council and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

PART IV.
—cont.

(4) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Council.

(5) In the event of the Council requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the byelaws with respect to streets and buildings in force in the district or of the Public Health (Buildings in Streets) Act 1888 the Council shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Council determine the centre of any street or intended street.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

No building
allowed until
street defined.

53.—(1) Where plans and sections of a new street have been deposited with and approved by the Council no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for any person except with such consent to erect the building or any fence nearer to the centre of the street than the posts or other marks by which the width of the street has been defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

No building
to be erected
until street
formed.

54.—(1) Any person who lays out or intends to lay out a new street or part of a new street shall before any building is begun to be erected abutting on such new street or part

of a new street if required by the Council so to do construct the carriageway of such new street or such part of the new street as may be required by the Council in accordance with the byelaws for the time being in force with respect to new streets and shall also if required sewer such street or such part of such street:

Provided that where any new street is or is intended to be constructed of a length exceeding one hundred yards the Council shall not be empowered to require such new street to be constructed in its entire length by one operation but such new street may be constructed in parts and in such event nothing in this section shall prevent the erection of a new building abutting on any part of such street in reference to which the foregoing provisions of this section have been complied with.

(2) The execution of any works under the provisions of this section shall not relieve any person of any liability under section 150 of the Public Health Act 1875 or under the Private Street Works Act 1892 or under the local Acts for the time being in force in the district. 55 & 56 Vict. c. 57.

(3) Any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

55.—(1) The Council may on the deposit of a plan and sections of a new street in pursuance of any byelaw in force in the district by order prohibit the erection or retention on land belonging to the owner of the land upon which such new street is proposed to be constructed or laid out of any wall or fence at either end of such new street in order to secure means of communication between such new street and any other street or intended street or for the purpose of securing an adequate opening at either end of the new street: As to termination of new streets.

Provided that such prohibition shall not become operative until the streets on both sides of such wall or fence shall become highways repairable by the inhabitants at large.

(2) If any person acts in contravention of any order made by the Council under the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

56. The powers conferred upon the Council by section 17 of the Public Health Acts Amendment Act 1907 to vary the intended position of a new street so far as is necessary for the purpose of securing more direct easier or more convenient means of communication with any other street or intended street shall be extended so as to enable them (subject to the Rounding of corners at street junctions.
7 Edw. 7. c. 53.

PART IV.
—cont.

provisions of that section) to require that the corners formed at the junction of a new street with another street (whether new or existing) shall for the purposes of safety be rounded off so as to be coincident with the arc of a circle tangential to the adjacent boundaries of the two streets and having such radius as may be determined by the Council.

Amendment
of section 17
of Public
Health Acts
Amendment
Act 1907.

57. Section 17 of the Public Health Acts Amendment Act 1907 shall in its application to the district be read and have effect as if subsection (2) of the said section were omitted therefrom.

Power to
provide tubs
for trees &c.

58. The Council may provide and maintain in any street (including the footway) repairable by the inhabitants at large tubs for trees or plants. Provided that this power shall not be exercised so as to hinder the reasonable use of the street or footway by the public or any person entitled to use the same or so as to become a nuisance or injurious to any adjacent owner or occupier.

Amendment
of Private
Street Works
Act 1892 in
relation to
parts of streets
which are
public foot-
ways or
otherwise
repairable by
inhabitants
at large.

59.—(1) In this section the expression “private street works” has the same meaning as in section 6 of the Private Street Works Act 1892.

(2) Notwithstanding anything contained in the Private Street Works Act 1892 where it appears to the Council that by reason of additions made otherwise than by the Council to an existing footpath bridle-path or other right of way repairable by the inhabitants at large (not being or comprising a carriageway) a new street has been formed the Council may in respect of such street carry out private street works under the provisions of the Private Street Works Act 1892 and apportion the expenses thereof on the premises fronting adjoining or abutting on such street as if no part of the said street was so repairable.

(3) Notwithstanding anything contained in the Private Street Works Act 1892 the Council may under the provisions of that Act carry out private street works throughout the width of a street notwithstanding that part of the width consists of a highway repairable by the inhabitants at large but save in a case falling within the provisions of subsection (2) of this section the Council shall be entitled to apportion against the premises liable to be charged therewith only such part of the expenses as relates to the portion of the street which is not so repairable.

(4) For the purposes of any apportionment under subsection (3) of this section premises fronting adjoining or abutting on a street shall be deemed to front adjoin or abut on the portion of the street which is not repairable by the inhabitants at large.

60. The Council when carrying out any private street works in any street may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Council under this section shall be deemed part of the expenses of carrying out the private street works in any such street. Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street:

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Council shall be deemed to be the undertakers.

61. If—

- (1) any owner of land fronting adjoining or abutting on a street within the meaning of the Private Street Works Act 1892 and situate in the district conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (2) any expenses of works executed by the Council under the Private Street Works Act 1892 in or in relation to that street are apportioned on such part or portion of that land; and
- (3) the Council are unable to recover such expenses in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and
- (4) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the Private Street Works Act 1892;

As to evasion
by owners of
private street
works
expenses.

then such expenses or so much thereof as has not been recovered by the Council may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under the Private Street Works Act 1892 may be recovered as though he had not

PART IV.
—*cont.*

made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

As to urgent
repairs of
private streets.

62. Where in the opinion of the Council repairs the cost of which will not exceed twenty pounds are required in the case of any street not being a highway repairable by the inhabitants at large to obviate or remove danger to any passenger or vehicle in the street the Council may execute such repairs as they deem necessary and may themselves pay such cost and the execution of such repairs and the payment of such cost shall not prejudice or affect any statutory provisions for the time being in force relating to private street works and private improvement expenses or similar matters or of section 19 of the Public Health Acts Amendment Act 1907.

Means of
access to
buildings.

63.—(1) At any time within one month after the deposit of the plans of any new building intended or adapted for use as a house (or where such plans have been approved but the erection of the building has not been begun before the passing of this Act at any time before the erection thereof has been commenced) the Council may by notice in writing require the provision either before the building is erected or before it is sold let or occupied (as the Council shall specify) of sufficient means of communication between the building and a street which is either a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with the byelaws or other provisions for the time being in force with respect to new streets.

(2) If it appears to the Council to be necessary that the means of communication to be provided under this section shall be in the form of a street the Council may by their notice require a new street to be laid out and if the construction of such means of communication appears to them necessary they may by their notice require constructional work in connection with such means of communication not exceeding that required for a new street by the byelaws or other provisions in force with respect to the construction of new streets.

(3) Where notice of a requirement under this section has been given by the Council to any person such person shall not begin to erect or proceed with the erection of any building to which the notice relates nor sell let or occupy such building (as the notice shall specify) until the notice of the Council has been complied with or until security has been given to the satisfaction of the Council that the notice will be complied with.

(4) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

PART IV.
—cont.

64.—(1) The Council may prohibit the construction in or in connection with any house within the district of any cellar or room the floor level of which shall be lower than the ordinary level of the subsoil water on under or adjacent to the land on which such house shall be erected.

Cellars not
to be
constructed
below subsoil
water level.

(2) Any person offending against any prohibition of the Council under the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

65.—(1) The Council may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the classified road number of such street and the direction or the distance to towns railway stations public buildings and other places of a public character.

Direction
signs.

(2) Before putting up or painting a sign on a house building or place the Council shall give to the owner of such house building or place notice of their decision so to do.

(3) Any person who shall wilfully and without the consent of the Council obliterate deface obscure remove or alter any such sign otherwise than in the course of demolishing or altering the house or building shall be liable to a penalty not exceeding forty shillings and the Council may recover the expenses of replacement and making good from such person.

(4) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Acts 1930 to 1937 with respect to traffic signs and to any regulations made or any general or other directions given by the Minister of Transport in pursuance of the said provisions.

66.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for not less than twenty persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Council a plan and section thereof and shall comply with such conditions as the Council may prescribe for securing the stability of such stand or structure and protection against fire and for securing the safety of persons to be accommodated thereon.

Restriction on
erection of
temporary
stands &c.

PART IV.
—cont.

(2) Any person acting in contravention of this section or offending against any such condition shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of this section shall not apply to any stand or structure erected by a person who is the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

As to
neglected
sites.

67.—(1) In this section—

“ neglected site ” means the site of a demolished building in the district which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood;

“ owner ” in relation to a neglected site means a person other than a mortgagee not in possession who is for the time being entitled to dispose of the fee simple of the neglected site whether in possession or in reversion and includes also a person holding or entitled to the rents and profits of the neglected site under a lease or agreement the unexpired term whereof exceeds three years.

(2) A court of summary jurisdiction on complaint by the Council may order the owner of any neglected site to remove any rubbish resulting from the demolition of the building within a reasonable time to be fixed by the order.

(3) If the order is not obeyed within the time thereby prescribed the Council at any time after the expiration of such time may enter upon the neglected site and execute the order.

(4) All expenses incurred by the Council under subsection (3) of this section in relation to a neglected site may be recovered by the Council from the owner of the neglected site in a summary manner.

Undertakings
to bind
successive
owners.

68.—(1) Every undertaking or agreement under seal expressed to be made in pursuance of this section and given by or to the Council to or by the owner of any legal estate in land or property on the passing of plans or otherwise in connection with such land or property shall be binding upon such owner and his successors in title and all persons claiming through or under him or them and upon the Council and such owner shall be entitled to require from the Council a copy of such undertaking or agreement.

(2) Any such undertaking or agreement of such owner shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

15 & 16 Geo. 5.
c. 22.

(3) Any such undertaking or agreement of such owner shall not be binding upon any person in whom any other legal estate in such land or property is vested at the date thereof nor upon his successors in title unless such person joins in such undertaking or agreement.

PART IV.
—cont.

69. Nothing contained in the sections in this Part of this Act of which the marginal notes are—

“ Elevation of buildings erected on front lands to require approval ”;

“ Height of chimneys ”;

“ Frontage line in new streets ”; and

“ As to urgent repairs of private streets ”;

Saving for
railway
companies and
Grand Union
Canal
Company.

shall extend or apply to any building (not being a house or building used as offices other than a building so used which forms part of a railway station) railway canal dock wharf or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company or the Grand Union Canal Company in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway canal dock wharf work or land is used or held by such railway company primarily for railway purposes or by the Grand Union Canal Company primarily for canal dock or wharf purposes.

PART V.

SEWERS DRAINS &C.

70. For the purpose of facilitating the disposal of surface water and sewage the powers of the Council under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street in the district to provide separate sewers for the reception of surface water and of sewage respectively.

Separate
sewers for
sewage and
surface water.

71.—(1) The powers of the Council under section 21 of the Public Health Act 1925 shall extend to authorise them to require the execution and maintenance of such works as may be necessary to convey surface water from premises to which that section applies to some drain sewer or watercourse or the disposal of such surface water in such other manner as the Council may require.

Water from
buildings &c.
to be conveyed
to sewers.

(2) It shall be the duty of all owners of land or premises to provide lay and keep in repair such gutters drains channels and other works as may be requisite for complying with section 21 of the Public Health Act 1925 as amended by this

PART V.
—cont.

section and for the purpose of laying and repairing the same the owner of any land or premises may take up so much of any street as may be requisite and such gutters drains channels and other works shall be laid and thereafter kept in good repair and condition and the street shall be reinstated under the direction of the surveyor and all damage occasioned to the street shall be made good by such owner to the satisfaction of the surveyor.

(3) In the event of default on the part of the owner of any land or premises to comply with the provisions of subsection (2) of this section the Council may execute any necessary work and recover the cost of so doing from such owner.

Byelaws as to throwing slop water into street gullies.

72. Section 81 of the Public Health Act 1936 shall extend to empower the Council to make byelaws for preventing slop water from any house or premises from being discharged or thrown or suffered to be discharged or thrown or to pass into any street gully in the district.

Improper construction or repair of water-closet or drain.

73.—(1) If a water-closet drain ventilation pipe or soil-pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such nuisance or injury or danger to health could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if the person charged proves to the satisfaction of the court that he has used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Apportionment to frontagers of expenses of sewer constructed under public highway.

74.—(1) Where the Council resolve to construct a sewer in a street or part of a street within the district repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Council increase the value of premises fronting adjoining or abutting on such street or part of a street then subject to the provisions of the section of this Act whereof the marginal note is "Provisions applicable to the last two preceding sections" the expenses incurred by the Council in constructing the sewer so far as they do not exceed

the sum authorised by that section shall be apportioned by the Council on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published in a local newspaper circulating in the district but shall become operative as from the date of such publication. Copies of the newspaper containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Council and the owner of the land.

75.—(1) Where the Council have incurred expenses in constructing after the passing of this Act a length of sewer in or under land within the district and that land has subsequently become a street (whether repairable by the inhabitants at large or not) then subject to the provisions of the next succeeding section of this Act the expenses so incurred so far as they do not exceed the sum authorised by that section shall be apportioned by the Council on the premises fronting adjoining or abutting on the street according to the frontages of the respective premises.

Apportionment to frontagers of expenses of construction of sewer before land became a street.

(2) Where on the construction of the length of sewer compensation became due to the owner of any land in on or over which the length of sewer was constructed in respect of the damage he sustained by reason of such construction and any sum was set off against such compensation on account of the value of land belonging to such owner having been enhanced by the construction of the length of sewer this section shall not apply to the length of sewer or to such part thereof as was constructed in on or over such land as aforesaid.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Council and the owner of the land.

76.—(1) The sum apportionable under either of the two last preceding sections of this Act shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the district multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

Provisions applicable to last two preceding sections.

PART V.
—cont.

(2) As soon as the apportionment has been made the Council shall serve on the owners of the several premises affected notice in writing of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

(3) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(4) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date when the resolution became operative or the street was laid out (as the case may be) the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of a street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

For the purposes of this subsection—

- (a) a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date;
- (b) any such re-erection alteration or extension of a building as is mentioned in the Third Schedule to the Restriction of Ribbon Development Act 1935 shall be deemed to be the erection of a new building Provided that references in the said schedule to the date on which the restrictions came into force shall for the purposes of this subsection be construed as references to the date when the resolution became operative or the street was laid out as the case may be.

(5) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be

treated as a local land charge for the purposes of the Land Charges Act 1925 and where part thereof has become recoverable the balance shall be so treated.

(6) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(7) Where such a resolution as is mentioned in the section of this Act whereof the marginal note is "Apportionment to frontagers of expenses of sewer constructed under public highway" has been passed but the construction of the sewer to which it relates has not been completed within two years from the date when the resolution became operative all liabilities of frontagers consequent thereon shall cease to have effect.

(8) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Council or on appeal a court of summary jurisdiction may remit such part of that sum as they may think just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(9) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered summarily as a civil debt by the Council from the person who is the owner of the premises at the date when a demand for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

77. If on a complaint by the Council to a court of summary jurisdiction it is proved to the satisfaction of the court—

(i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land; and

(ii) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of sewer constructed under public highway" or as the case may be of the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of construction of sewer before land became a street"; and

As to evasion
by owners of
sewerage
expenses.

PART V.
—cont.

- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the said sections of this Act;

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same extent and in the same manner as any sum apportioned under either of the said sections of this Act of which the marginal notes are "Apportionment to frontagers of expenses of sewer constructed under public highway" and "Apportionment to frontagers of expenses of construction of sewer before land became a street" may be recovered and is charged on the premises under the said last preceding section of this Act.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Information
to be furnished
in case of
notifiable
disease.

78.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

Parents &c.
to notify
certain
diseases.

79.—(1) As from the commencement of this section any parent or other person having the care or charge of a child attending at a school in the district who is aware of or has reason to suspect the occurrence of any disease to which this section applies in any person residing with him or is himself suffering from such a disease and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(3) For the purpose of this section the expression " school " shall include a Sunday school.

80.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child—

Restrictions
on attendance
at schools and
places of
assembly.

- (a) who is or has been attending any school or any part thereof which for the time being is closed by order of the Council or of the education committee of the Derbyshire County Council with the view of preventing the spread of a disease to which this section applies; or
- (b) who is suffering from a disease to which this section applies; or
- (c) who with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

PART VI.
—cont.

(3) In this section the expression “ day school ” means a school (not being a school maintained by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

Power to
close schools
and exclude
children from
entertain-
ments.

81.—(1) If the Council or any committee of the Council acting on the advice of the medical officer with the view of preventing the spread of a disease to which this section applies require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(4) In this section the expression “ day school ” means a school (not being a school maintained by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

Removal of
infirm and
diseased
persons in
certain cases.

82.—(1) If the medical officer certifies in writing that any person in the district—

(a) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

(b) is suffering from any grave chronic disease;

and that such person is unable to devote to himself or to receive from persons with whom he resides proper care and attention and that thorough inquiry and consideration have shown the necessity in the interest of the health of such person and for preventing injury to the health of or serious nuisance

to other persons that he should be removed from the premises in which he is residing the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination of such person by a registered medical practitioner to be nominated by them (if they think fit) may make an order for the removal of such person to a suitable hospital infirmary or other institution or other suitable place provided within the district or within a convenient distance of the district and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period or periods each not exceeding three months as may be determined by any further order or orders made under and in accordance with the provisions of this section.

(2) The medical officer shall give to any person proposed to be removed under the provisions of this section or to some person being in charge of such person three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The cost of the removal of any person to a hospital infirmary or other institution or place as aforesaid and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Council and during any period for which a person is so detained the Council may and if so required by the court shall make towards the maintenance of any dependants of that person such contributions as the Council think fit or as may be directed by the court as the case may be:

Provided that where the institution to which the said person is to be removed is a public assistance institution the authority to whom the institution belongs may in the exercise of their powers under any scheme made under Part I of the Local Government Act 1929 assume such obligations with regard to the maintenance of the said person and his dependants as may be agreed between that authority and the Council.

19 & 20 Geo. 5.
c. 17.

(4) An order under this section may be addressed to such officers of the Council as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to a court of summary jurisdiction acting for the same place as the court which made the order by or on behalf of the person in respect of whom the order was made for the

PART VI.
—cont.

rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made.

Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the Council so to do either generally or in any particular case in which those powers are proposed to be exercised and no application for an order shall be made under the provisions of this section for the removal of any person to any hospital infirmary or other institution without the consent in writing of the authority or body having the control thereof.

Supply of
antidotes
against
notifiable
disease.

83. The Council may provide and supply (with or without charge therefor) to any registered medical practitioner antidotes and remedies against any notifiable disease.

Byelaws as to
burning of
refuse.

84. Section 82 of the Public Health Act 1936 in its application to the district shall be extended so as to empower the Council to make byelaws prescribing the times and the days of the week during which trade refuse may be set fire to or burned in yards and gardens.

Byelaws as
to tipping
refuse.

85.—(1) Section 81 of the Public Health Act 1936 shall extend to empower the Council to make byelaws for regulating the tipping of dust spoil and refuse and for prohibiting the use of any refuse tip so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof.

(2) The Council may by any byelaws made by them in pursuance of this section impose on offenders against the same such penalties as they think fit not exceeding the sum of fifty pounds for each offence and in the case of a continuing offence a daily penalty not exceeding ten pounds.

(3) Without prejudice to any other remedy available the Council if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Public Health Act 1936 authorised to proceed with respect to a statutory nuisance of the existence of which they are satisfied and sections 93 to 98 inclusive and section 100 of that Act shall apply accordingly:

(4) Provided that a person offending against any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 94 of the Public Health Act 1936 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a further penalty under the byelaws for the continuance of his offence after conviction and to a penalty under section 95 of the Public Health Act 1936 (as so applied) for failing to comply with an order or contravening an order.

(5) No byelaw under this section shall extend to regulate or control the tipping of spoil and refuse by a railway or canal company for the purpose of constructing widening deepening or maintaining any railway canal dock or wharf works.

86.—(1) The owner of two or more sanitary conveniences within the district provided for or in connection with two or more separate houses and used in common by the occupiers of such houses shall so far as reasonably practicable allot such sanitary conveniences to the occupiers of particular houses so as to insure that the same are allocated proportionately (as nearly as may be) amongst such houses. Sanitary conveniences used in common.

(2) The owner of any such sanitary conveniences shall cause to be affixed to and maintained on the door or walls of each such sanitary convenience a notice identifying the house the occupiers of which are entitled to use such sanitary convenience.

(3) Any owner who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

87.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain water-closet or soil pipe is stopped up the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Council may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier summarily as a civil debt. As to defective drains &c.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Council was reasonable and whether the expenses incurred by the Council in doing such work or any part thereof ought to be borne

PART VI.
—cont.

wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

Vacation of
filthy premises
during
cleansing.

88.—(1) (a) If the owner of any house or premises occupied therewith within the district represents to the Council that the occupier of such house or premises habitually maintains the same in a filthy condition any officer of the Council duly authorised in that behalf may enter upon such house or premises and inspect the same and if the Council or a committee of the Council are satisfied of the truth of the representation of such owner the occupier shall be liable on the complaint of the medical officer to a court of summary jurisdiction to be ordered to vacate the house or premises for such time to be specified in the order as may be reasonably required for remedying the condition of the house or premises by cleansing disinfecting or whitewashing or taking such other steps as may be necessary for such purpose.

42 & 43 Vict.
c. 49.

(b) Any order made under this section may be enforced in the manner provided by section 34 of the Summary Jurisdiction Act 1879.

(2) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed not to apply to a house or premises by reason only of the fact that such house or premises have been vacated in compliance with an order made under this section.

(3) Any expenses incurred by the Council under this section and not paid by the occupier shall be recoverable from the owner of the house or premises.

Byelaws as
to stables.

89. The Council may make byelaws for securing the proper ventilation and lighting of any existing stable used for the accommodation of horses (whether the same is used as such at the passing of this Act or not) and for the prevention of insanitary conditions (a) in or about or arising out of any such stable or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

Discontinu-
ance of
offensive
trade.

90.—(1) In any case in which premises are being used for the carrying on of an offensive trade within the meaning of section 107 of the Public Health Act 1936 and the Council by resolution decide that it is inexpedient in the interests of public health or having regard to any change since the date of the establishment of such offensive trade in the character of the neighbourhood in which such premises are situate that such trade should be carried on in such premises the Council may

serve on the owner or occupier of such premises notice in writing stating the effect of the resolution and requiring him before the expiration of six months from the date of the notice to cease to use such premises for the carrying on of such offensive trade.

PART VI.
—cont.

(2) Any person who fails or neglects to comply with any requirements of the Council under the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Council require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person compensation for any loss sustained by him in consequence of the action of the Council. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Council shall have been given for a period only unless the Council shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of any other powers of the Council with reference to offensive trades.

91.—(1) The Council on payment to them for the registration of any houseboat on any canal or navigable river in the district of the sum appointed by them and on the applicant for such registration complying with the byelaws made by the Council in pursuance of the powers of the section of this Act of which the marginal note is “ Byelaws with regard to houseboats ” so far as regards the registration of houseboats shall assign to such houseboat a number and shall register such houseboat in a book to be kept by the Council for that purpose at the town hall in the district together with the several particulars concerning such houseboat which the said byelaws may require and the number assigned to such houseboat and shall grant to the owner of such houseboat a certificate of such registration bearing the number assigned to such houseboat and such certificate shall be in force for the period determined by the Council and (unless renewed) no longer but the Council shall from time to time grant a renewal of such certificate for a period to be determined by the Council on payment of the sum determined by the Council and every such certificate and any renewal thereof is in this section referred to as a “ houseboat certificate.”

Registration
of houseboats
in district.

PART VI.
—cont.

(2) Provided that the sum to be paid for the registration of any houseboat as aforesaid or for the renewal of any houseboat certificate shall not exceed one pound.

(3) Provided also that the period for which any houseboat certificate shall be in force shall not be less than one year.

Byelaws with
regard to
houseboats.

92. The Council may from time to time make byelaws with regard to the use of houseboats on any canal or navigable river in the district for all or any of the following purposes (namely):—

- (a) the registration of such houseboats the form of application for a certificate of registration and the particulars to be supplied to the Council on such application being made;
- (b) the regulation of such houseboats;
- (c) the prevention of the passing into any such canal or navigable river from or out of any such houseboat of any sewage or any other offensive or injurious matter whether solid or fluid;
- (d) for compelling with a view to the prevention of pollution of any such canal or navigable river the alteration as the Council may think fit of such houseboats and the provision of such houseboats with such sanitary appliances as the Council may require.

Extension of
section 268
of Public
Health Act
1936 to
houseboats.

93. The provisions of section 268 of the Public Health Act 1936 except subsection (4) of that section shall extend and apply to any houseboat which is used for human habitation on any canal or navigable river in the district in such a way as to be a nuisance or injurious to health or to cause a nuisance or give rise to conditions injurious to health.

Saving for
canal boats.

94. For the purpose of the three last preceding sections of this Act the word "houseboat" shall not include a canal boat registered under Part X of the Public Health Act 1936 or any enactment repealed by that Act and dealing with the registration and regulation of canal boats used as dwellings.

PART VII.

HUMAN FOOD.

Registration
of hawkers of
meat fish
fruit and
vegetables
and premises.

95.—(1) As from the commencement of this section the following provisions shall have effect in the district:—

- (a) Any person other than a person keeping open shop for the sale of meat or meat food product or fish or fruit or vegetables who shall by himself or by any person employed by him sell or offer or expose

for sale any meat or meat food product or fish or fruit or vegetables from any cart barrow or other vehicle or from any basket pail tray or other receptacle; and

- (b) Any premises used or proposed to be used as storage accommodation for any meat or meat food product or fish or fruit or vegetables intended for sale from any such vehicle or receptacle;

shall be registered with the Council in the case of any such person by himself and in the case of any such premises by the owner or occupier or intending owner or occupier thereof.

(2) (a) No person other than a person keeping open shop for the sale of meat or meat food product or fish or fruit or vegetables shall by himself or by any person employed by him sell or offer or expose for sale any meat or meat food product or fish or fruit or vegetables from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is so registered as aforesaid.

(b) No premises shall be used as storage accommodation for any meat or meat food product or fish or fruit or vegetables intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless such premises are so registered as aforesaid.

(3) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) (a) The Council may refuse to register any such person or premises as is or are referred to in subsection (1) of this section or (after giving one month's notice in writing to the person registered or in whose name any such premises are registered) may revoke the registration of any such person or premises if they are satisfied (as regards any such person) that the public health is or is likely to be endangered by any act or default of such person in relation to the quality storage or distribution of the meat or meat food product or fish or fruit or vegetables as the case may be or (as regards any such premises) that such premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Council shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Council should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

PART VII.
—cont.

(b) If the Council refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction (under the section of this Act of which the marginal note is "As to appeals") against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Council appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the district in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for meat or meat food product or fish or fruit or vegetables intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Council shall keep a register of the persons and premises registered under the provisions of this section.

(7) In and for the purposes of this section—

"meat" means the flesh of cattle swine sheep or goats including bacon and ham and edible offal and fat which is sold or intended for sale for human consumption;

"meat food product" means any article of food intended for sale for human consumption and derived or prepared in whole or in part from meat.

Notice of
slaughter of
animal unfit
for food.

96.—(1) As from the commencement of this section where any person being the owner of any bull ox cow heifer calf sheep lamb goat or pig which is emaciated or diseased and unfit for food is about to slaughter the same or about to cause the same to be slaughtered he shall give not less than twelve hours' previous notice to the medical officer or sanitary inspector of such intention and shall on the application of the medical officer or sanitary inspector within six weeks from the date of such slaughter furnish such information within his knowledge as the medical officer or sanitary inspector may reasonably require for the purpose of enabling enquiries to be made to trace the disposition of the carcasses or any part thereof.

(2) Any person failing to give such notice or refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding ten pounds.

(3) This section shall not apply to the slaughter of any animal to which the Public Health (Meat) Regulations 1924 apply.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1937 or of Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder. 1 Edw. 8. &
1 Geo. 6. c. 70.

97.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed within the district in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Council may request such person to stop his employment and on such request being made the Council may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage. Power to
prohibit
persons in
advanced
state of
tuberculosis
from selling
&c. food.

(2) If any such person shall fail to comply with such request the Council may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Council to such person.

(3) If any such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

98.—(1) The occupier of any shop cellar passage or other space forming the whole or part of a building in which food (other than (a) milk (b) meat to which the Public Health (Meat) Regulations 1924 apply and (c) food which is packed in tins or other strongly constructed and impervious cases) is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall take all such steps as may be reasonably necessary to guard Precautions
against con-
tamination of
food.

PART VII.
—cont.

against the contamination of such food by flies and shall cause such food to be so placed as to prevent mud filth or other contaminating substance being splashed or blown thereon.

(2) Any person who shall fail to comply with the provisions of this section shall be liable to a penalty of forty shillings and to a daily penalty not exceeding ten shillings.

PART VIII.

PUBLIC BUILDINGS PARKS &C.

Power to
provide
concert halls
&c.

99.—(1) The Council may provide concert halls entertainment rooms reading rooms pavilions and bandstands with all necessary and suitable offices refreshment-rooms kitchens cloak-rooms lavatories conveniences and appliances.

(2) For the purposes aforesaid the Council may—

- (a) erect or adapt buildings in any public park or pleasure ground belonging to them;
- (b) acquire buildings or acquire land and erect buildings thereon;

- (c) with the consent of the Minister adapt any premises or erect buildings on any land belonging to them but not already appropriated to entertainment purposes;

and may provide erect and maintain shops and offices as part of the buildings so acquired or erected.

(3) The Council may furnish and equip any premises provided by them under this section.

Power to
provide &c.
entertain-
ments.

100.—(1) The Council may use or allow to be used or let any premises provided under subsection (1) of the last preceding section of this Act for concerts and other entertainments and may themselves provide or arrange for the provision of or contribute towards the expenses of any such concerts or entertainments and may make or allow to be made such charges as they think fit in connection therewith:

Provided that—

- (a) the Council shall not themselves use any such premises for a cinematograph theatre except for the exhibition of a cinematograph film relating to the functions of county councils or other local authorities nor shall they grant or let the use of any such buildings for the purposes of a theatre music-hall or cinematograph theatre except on the best terms that can be obtained;

(b) the power of the Council themselves to provide entertainments shall include a power to provide concerts and pierrot or other entertainments whether theatrical costume is or is not used in connection therewith and either with or without appropriate scenery but save as aforesaid the Council shall not provide or arrange for the provision of stage plays performed by persons other than members of any amateur dramatic society or any entertainment for which scenery or theatrical costume is used and which forms a complete programme of variety entertainments as usually given at a music-hall;

(c) the net amount of the expenses incurred by the Council under this section when added to the net amount of the expenses incurred by them in the provision of entertainments under section 76 of the Public Health Acts Amendment Act 1907 and section 56 of the Public Health Act 1925 shall not in any one year exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one penny and a third in the pound Provided that the limitation hereby imposed shall not apply in respect of any excess rate which may be approved by the Minister under the provisions of subsection (3) of section 56 of the Public Health Act 1925.

(2) The Council may provide and sell or authorise the provision and sale of programmes of any concert or entertainment given in pursuance of this section.

(3) The Council may make byelaws for securing good and orderly conduct during any concerts or entertainments given in pursuance of this section.

(4) Nothing in this or in the last preceding section shall be taken to dispense with the consent of the Minister of Education to any appropriation lease or other disposition of any lands of the Council in any case in which such consent would have been required if this section had not been passed.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition.

PART VIII.

—cont.

Boating
pools.

101.—(1) Subject to the provisions of this Act the Council may in any park recreation ground or open space belonging to them construct and maintain boating pools together with such buildings works appliances and conveniences as may be necessary or proper in connection therewith.

(2) The Council may make such reasonable charges as they may think fit for the admission to and use of any boating pools by this Act authorised to be constructed or any part thereof or any works appliances or conveniences provided in connection therewith or any other buildings erected with the approval of the Minister and the Council may if they think fit let any such works appliances conveniences and buildings.

(3) The provisions of subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 shall apply as if a boating pool were a lake or piece of water in a park or pleasure ground provided by the Council.

(4) The Council may make byelaws for regulating the use of any such boating pool and works appliances and conveniences in connection therewith.

Charges for
and letting of
parks &c.
for games.

102. When any portion of any park or place of public resort or recreation is set apart by the Council for any purpose under section 76 of the Public Health Acts Amendment Act 1907 the Council may permit the exclusive use by any club or other body or persons of any part of any park or place of public resort or recreation set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to such charges and conditions as the Council may think fit:

Provided that nothing in this section shall empower the Council to permit at one and the same time the exclusive use of more than fifty per centum of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than twenty-five per centum of the total area of all such parks and places.

As to use of
parts of
recreation
grounds for
parking places.

103.—(1) The provisions of section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 shall extend to enable the Council from time to time to utilise as lands which may lawfully be appropriated as a parking place or as parking places for vehicles such part or parts of their parks recreation grounds or pleasure grounds not exceeding in the case of any park recreation ground or pleasure ground one acre or one-eighth of the area of such park recreation ground or pleasure ground (whichever may be the less) as the Minister may sanction and the provisions of the said section relating

to the utilisation for parking places of land not forming part of a street shall *mutatis mutandis* apply and have effect for the purposes of this subsection.

PART VIII.
—cont.

(2) The provisions of section 90 of the Road Traffic Act 1930 except subsections (1) (7) and (9) thereof shall apply to any parking place provided under this section.

104. No power conferred upon the Council by the preceding sections of this Part of this Act shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Council without an Order of the High Court or of the Charity Commissioners or the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

Saving for trusts covenants &c. in conveyances and leases.

105.—(1) The Council may procure officers appointed by them for securing the observance of this Part of this Act and of the provisions of all other Acts relating to parks and pleasure grounds and of the byelaws and regulations made thereunder to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant. Provided that no such officer shall be nominated by the Council to be sworn in as a constable without such nomination having been first approved by the standing joint committee of the court of quarter sessions and the county council of the administrative county of Derby appointed under section 30 of the Local Government Act 1888.

Officers may be sworn in as constables.

51 & 52 Vict.
c. 41.

(2) Nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service.

11 & 12 Geo. 5.
c. 31.

PART IX.

LANDS.

106.—(1) The Council notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable that the Council should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the district.

Further powers for acquisition of lands.

PART IX.
—cont.

(2) When any lands purchased or acquired or taken on lease by the Council under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Council and pending such appropriation all expenses incurred by the Council under this section shall be payable out of the general rate fund and general rate.

Retention
and disposal
of lands.

107.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Council may retain and hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the district (other than the Housing Act 1936 or any Act repealed by that Act) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interest therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained:

Provided also that nothing in this section shall be taken to dispense with the consent of any government department to any sale lease appropriation or other disposition of any lands of the Council (other than lands acquired under any local Act applying to the Council) in any case in which such consent would have been required if this Act had not been passed.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or

any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in the like manner and to the same extent as if this Act had not been passed.

108. The Council on selling any lands may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. Reservation of easements &c.

109.—(1) The Council may accept a surrender of any lease or letting granted by them of lands acquired under the powers of this Act or any local Act for the time being in force within the district and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of the lands as aforesaid. Powers with reference to leases of lands.

(2) The Council may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Council of or in all or any of the lands leased or let or agreed to be leased or let at such time and on such terms and conditions as may be determined by the Council in their discretion.

110.—(1) The Council may (with the consent of the Minister) lay out and develop any lands at any time belonging to the Council and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave flag channel and kerb streets roads and ways on any such lands. Power to develop lands.

(2) The Council may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

PART IX.

—cont.

Houses for
persons in
employment
of Council.

111.—(1) The Council may purchase or take on lease houses and other buildings for persons employed by them for the purposes of their several undertakings and offices and other buildings for those purposes and may erect fit up maintain and let any such houses and buildings upon any lands for the time being belonging to the Council and (subject to the terms of the lease) upon any lands for the time being leased to the Council for those purposes.

(2) Nothing contained in this section shall empower the Council to create or permit a nuisance.

Proceeds of
sale of surplus
lands.

112.—(1) The Council may (so far as they consider necessary) apply subject to the approval of the Minister any capital moneys received by them on the resale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister.

(2) Any capital moneys received by the Council on the resale or exchange of or by leasing any lands acquired under any Act other than this Act shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister.

Purchase of
lands for
exchange.

113. The powers of the Council of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Council by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of this Act.

Power to
reinstate
owners of
property.

114. The Council may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired by the Council under the provisions of any general or local enactment from time to time in force in the district with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Council may pay or receive money for equality of exchange.

PART X.

FINANCIAL PROVISIONS.

115.—(1) The Council shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Council may determine not exceeding five years from the passing of this Act. Power to borrow.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

116. Sections 213 and 214 of the Local Government Act 1933 shall apply with respect to any sinking fund formed by the Council for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Council shall make such adjustments of any existing sinking funds as may be proper. Application of Local Government Act 1933 to existing sinking funds of Council.

117. If any money is payable to a holder of any authorised security being a minor the receipt of his guardian shall be a sufficient discharge to the Council. Receipts in case of minors.

118.—(1) The Council may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter period next before the date on which interest on the authorised securities to which such transfer book or register relates is payable. Closing of registers.

(2) The persons who on the date on which the transfer book or register is closed are entered therein as holders of any security of the class to which such transfer book or register relates shall be entitled to the interest next payable thereon.

119.—(1) In addition to any other form of borrowing the Council may exercise any statutory borrowing power by the issue of bonds to be called "Long Eaton Council bonds" (and in this Act referred to as "bonds") in accordance with the provisions of this Act. Power to borrow by issue of bonds.

PART X.
—cont.

(2) Where the Council raise money by the issue of bonds sections 209 210 211 212 213 and 214 of the Local Government Act 1933 shall apply as if the money had been raised by borrowing by mortgage under that Act and bonds were mortgages within the meaning of that Act.

(3) The provisions set out in the schedule to this Act shall have effect with regard to bonds.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

62 & 63 Vict.
c. 9.
7 Edw. 7.
c. 13.
54 & 55 Vict.
c. 39.

Saving for
Local
Authorities
Loans Act
1945 and
emergency
power of
Treasury.

8 & 9 Geo. 6.
c. 18.
9 Geo. 6. c. 10.

9 & 10 Geo. 6.
c. 58.

Dividend
warrants by
post.

120. It shall not be lawful for the Council to exercise the power of borrowing by the issue of bonds conferred by this Act—

- (a) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945; and
- (b) so long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an order made under the Borrowing (Control and Guarantees) Act 1946 without such consent.

121.—(1) The Council may give notice to any person being registered as a holder of any authorised security of the Council (other than stock) that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Council of such objection the Council may from time to time send orders for the payment of interest or dividend warrants by post to the address of such person appearing in the register. Provided that if such person give notice to the Council that he desires such orders or warrants to be sent to another person at a given address the Council may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for

the purpose of this section be regarded as the holder of the security unless notice in writing to the contrary has been given to the Council by any other of them.

PART X.
—cont.

(3) The posting by the Council of an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Council be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Council shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882. 45 & 46 Vict.
c. 61.

122.—(1) Notwithstanding anything contained in any other Act or Order on and after the thirty-first day of March one thousand nine hundred and forty-six the Council may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid— Consolidated
loans fund.

- (a) all moneys borrowed by the Council by the issue of authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Council whether from the sale of capital assets or otherwise except such as are applied by the Council with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Council to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Council as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Council—

- (a) in the redemption of authorised securities the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Council; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Council:

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied

PART X.
—cont.

within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet interest charges and the financing and other revenue expenses connected with the management of that fund and separate account shall be kept of the said sums and their application.

(4) The Council may pay into the consolidated loans fund any moneys forming part of any reserve capital reserve renewals repairs depreciation contingency or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Council within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

- (a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and
- (b) There shall be paid out of the consolidated loans fund to the general rate fund an amount equal to the interest on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the average rate of interest payable by the Council on their current borrowings and in the accounts of the general rate fund an amount equal to the interest as aforesaid (subject in the case of any of the said funds to any prescribed limit on the amount thereof) shall be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Council to the holders of authorised securities shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Council except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may be altered amended or revoked by a scheme made in like manner as the original scheme.

123.—(1) The Council may establish a fund to be called “ the capital reserve fund ” for the purpose of defraying any expenditure to which capital is properly applicable (other than expenditure in connection with any undertaking of the Council as from time to time existing from which revenue is derived) to an amount not exceeding five thousand pounds in any one transaction and such fund shall be formed by appropriating in the accounts of the Council such sums out of the general rate fund as the Council may from time to time deem expedient Provided that—

Capital
reserve fund.

(a) except as provided by subsection (2) (b) of this section any sum or sums so appropriated or paid to the capital reserve fund from the general rate fund shall not exceed in any financial year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act 1925;

(b) appropriations to and payments into the capital reserve fund shall cease to be made whenever the said fund amounts to the sum of fifteen thousand pounds but if the fund is at any time reduced below the sum of fifteen thousand pounds the Council may recommence and continue the appropriations and payments until the fund be restored to the sum of fifteen thousand pounds.

(2) (a) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by this Act) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital reserve fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (b) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital reserve fund.

124.—(1) The Council may if they think fit in any year apply from the general rate fund or from the proceeds of the general rate to a fund to be called “ the renewal and repairs fund ” any sum not exceeding the equivalent of a rate of one penny in the pound calculated according to the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925.

Renewal and
repairs fund.

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed five thousand pounds.

PART X.
—cont.

(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for—

- (a) the provision maintenance and renewal of horses carts mechanically propelled vehicles stables depots boilers equipment and apparatus in connection therewith; and
- (b) the maintenance and repair of paths and apparatus in public walks and pleasure grounds and of buildings; and
- (c) the maintenance and repair of buildings (not being buildings in respect of which the Council are required by the Housing Act 1936 to keep a housing repairs account);

which are not comprised in the undertakings of the Council as from time to time existing from which revenue is derived and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

(4) (a) Pending the application of the renewal and repairs fund to the purposes authorised by subsection (3) of this section the moneys in the fund shall (unless applied in any other manner authorised by this Act) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (2) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

Accounts of
undertakings.

125.—(1) The Council shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Council as from time to time existing from which revenue is derived (each of which is in this section separately referred to as “the undertaking”) on the one side all receipts in respect of the undertaking (including the income from any authorised fund provided in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

- (a) the working and establishment expenses and cost of maintenance of the undertaking;

- (b) the interest on moneys borrowed by the Council for the purposes of or connected with the undertaking or used for those purposes under any enactment;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) paid to any reserve fund which the Council are from time to time authorised to maintain; and
- (f) any money expended on any of the purposes mentioned in the section of this Act of which the marginal note is "Application of revenue of undertakings" other than the purpose mentioned in paragraph (e) of this subsection.

(2) The Council shall show in their accounts relating to any undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

126.—(1) If in respect of any year the moneys received by the Council on account of the revenue of any of the undertakings of the Council (including the interest and other annual proceeds received by the Council in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Council out of the general rate fund in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section the Council may in respect of that year (if they think fit but subject to the provisions hereinafter contained) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

Application
of revenue of
undertakings.

- (a) In reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) In the renewal and (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners as respects expenditure

PART X.
—cont.

chargeable to capital account) the construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys;

- (c) In providing a reserve fund in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are used in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts (i) in the case of the electricity undertaking to a sum equal to one-tenth of the aggregate capital expenditure of the Council on that undertaking and (ii) in the case of any other undertakings to the maximum reserve fund for the time being prescribed by the Council.

(2) Any reserve fund which has been provided in respect of any undertaking of the Council and which is in existence on the first day of April one thousand nine hundred and forty-six shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

(3) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Council from the undertaking in connection with which it is formed; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Council in respect of the undertaking; or
- (c) (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners as respects expenditure chargeable to capital account) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

127.—(1) In lieu of the provisions of subsection (1) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899 and of the amendments to that subsection set out in the Fifth Schedule to the Electricity (Supply) Act 1926 the following provisions (in addition to the provisions of the section of this Act of which the marginal note is "Application of revenue of undertakings") shall apply with respect to the electricity undertaking (namely):—

PART X.

—cont.

Provisions as to surplus electricity revenue.

16 & 17 Geo. 5.
c. 51.

If in respect of any year the moneys received by the Council on account of the revenue of the undertaking (including the interest and annual proceeds received by the Council in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the aggregate of the moneys paid or expended in respect of the undertaking for the several purposes mentioned in paragraphs (a) to (f) of subsection (1) of the section of this Act whereof the marginal note is "Accounts of undertakings" then—

(a) if the reserve fund in respect of the electricity undertaking does not amount to more than one-twentieth of the aggregate capital expended for the time being upon the undertaking the charges for electricity supplied by the Council shall be reduced by such amount or respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the said excess;

(b) if the said reserve fund amounts to more than one-twentieth of the said aggregate capital the Council shall fix such amount as they may think fit (not being less in any case in which the said excess is more than a sum equal to one and a half per centum of the outstanding debt of the undertaking than the difference between that sum and the said excess) and the charges for electricity supplied by the Council shall be reduced by such amount or respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the amount so fixed.

(2) The Council shall in every year so long as any reserve fund provided in respect of the electricity undertaking is less than the prescribed maximum transfer to that reserve fund out of the general rate fund an amount equal to the interest and other annual proceeds received by the Council in respect of all investments forming part of the said reserve fund and carried to the general rate fund.

PART X.

—cont.

Date of
operation of
certain
sections.

128. The three last preceding sections of this Act shall be deemed to have come into operation on the first day of April one thousand nine hundred and forty-six.

Recovery of
rate &c. from
persons
removing.

129. If a justice is satisfied on complaint by any officer of the Council duly authorised that any person is quitting or about to quit any premises in the district and has failed to pay on demand any general rate water rate water charge or electricity charge which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the defaulter to meet the claim of the Council and to detain them until the complaint is determined upon the return of the summons.

As to recovery
of rates from
tenants and
lodgers.

130. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the district shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

As to
operation of
section 11 of
Rating and
Valuation
Act 1925.

131. The Council may at any time by resolution determine with respect to any hereditament for the time being belonging to them the rent of which is payable or is collected at intervals of less than a quarter of a year to do any of the things which owners may do by agreement with the rating authority under subsection (2) of section 11 of the Rating and Valuation Act 1925 with the like conditions and consequences (other than the condition as to agreement in writing with the rating authority) as are applicable to owners under that section.

Recovery of
rates from
certain owners.

132.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Council so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Council from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rate hereditaments.

The remedy of the Council under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

PART X.
—cont.

(3) This section shall not apply to any hereditament to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the Council.

133. The Council may pay out of the general rate fund and general rate—

Subscriptions
to local
government
associations
and other
expenses.

(a) reasonable subscriptions whether annually or otherwise to the funds of any association of local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Council at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) the reasonable expenses of the Council in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the district.

134.—(1) The Council (subject as hereinafter provided) may subscribe to any charity philanthropic association or society or other associations institutions or societies rendering national or public service such sum or sums as they may from time to time think fit and may charge the amount of any such subscription to or apportion the same among all or any of their funds and revenues.

Subscriptions
to charitable
institutions.

(2) The total amount which the Council may expend under the provisions of this section shall not in any year exceed the amount which would be produced by the levying of a general rate of one halfpenny in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act 1925.

135.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner) of the Council to whom or to whose legal personal representative a sum not exceeding one hundred pounds is due from the Council on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation or other fund with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Council

As to pay-
ments due to
deceased
employees.

PART X.
—cont.15 & 16 Geo. 5.
c. 23.
16 & 17 Geo. 5.
c. 60.

within such time (not being less than one month after his death) as the Council may in all the circumstances think reasonable then at the expiration of that time the Council may pay such sum to the person or persons entitled to the residuary estate of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in a due course of administration Provided that—

(a) the Council may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Council shall deem it reasonable to allow;

(b) if the Council receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not pay such sum or the balance thereof in their hands to any person other than to the legal personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) The Council before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require either—

(a) a statutory declaration by the person or one of the persons to whom the Council may pay and propose to pay such sum or any part thereof in accordance with the provisions of subsection (1) of this section to the effect that the total net estate of the deceased employee (including such sum but after the deduction of debts and funeral expenses) does not exceed one hundred pounds; or

(b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.

PART XI.

MISCELLANEOUS.

Power to
erect weigh-
bridges.

136.—(1) The Council may erect and maintain on any open space or public place on or adjoining any highway in the district such weighbridges or weighing machines and offices in connection therewith as they may consider necessary or desirable for the use of the public.

(2) The Council may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing machines erected by the Council under the provisions of this section.

(4) The Council shall not erect or allow the use of any such weighbridge weighing machine or offices so as to obstruct the access to or exit from any station or depot of a railway company.

137.—(1) All steam or waste gas ejected from any stationary engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public.

Ejection of steam and waste gas to annoyance of public.

(2) Any person who shall cause or permit steam or waste gas or condensing water to be discharged contrary to the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of this section shall not apply to any locomotive used by a railway company.

138.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair.

Silencers for internal combustion engines.

(2) The Council shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Council if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway company and used by them for the purposes of their railway undertaking.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice in writing from the Council to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

Part XI.

—cont.

Noise
nuisance.

139.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Public Health Act 1936:

Provided that no complaint shall be made to a justice under section 99 of the said Act unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance complained of.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case:

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means within the meaning of the said Act of preventing or mitigating it have been adopted.

(3) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers.

(4) Nothing in this section shall affect the power of the Derbyshire County Council to make byelaws under section 249 of the Local Government Act 1933.

Shelters &c.
for passengers.

140.—(1) The Council with the consent of the Minister of Transport may erect and maintain at suitable stopping places on any of the routes along which any person is for the time being authorised to run omnibuses shelters and other accommodation for passengers but shall not use for that purpose any part of a highway which is not vested in the Council without the consent of the highway authority which consent shall not be unreasonably withheld and may be given subject to such reasonable terms and conditions as such highway authority may think fit. Any question which may arise as to whether any such consent is unreasonably withheld or whether any such terms or conditions are unreasonable shall be determined by the Minister of Transport.

(2) The Council may make byelaws for the regulation use and management of any such shelter and accommodation.

(3) The Council may enter and carry into effect agreements with any such person as is referred to in subsection (1) of this section for and in relation to the erection maintenance and use of any such shelters and other accommodation and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

141.—(1) The Council may from time to time make bye-laws—

PART XI.
—cont.

- (a) for regulating the hours during which pleasure fairs may be open to the public;
- (b) for securing safe and adequate means of ingress and egress to the ground upon which any pleasure fair is held;
- (c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair.

Byelaws as to pleasure fairs.

(2) In this section the expression “pleasure fair” means any entertainment which is run for profit and which consists of or includes any or all of the following whether or not in combination with any other forms of entertainment that is to say any travelling circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway cocoanut shy hoop-la shooting gallery or swings or anything similar to any of the foregoing:

Provided that the said expression does not include any fair held by statute charter royal licence letters patent or ancient custom.

142.—(1) The Council may if they think fit in cases not within the Workmen’s Compensation Act 1925 and not entitled to benefits under the Local Government Superannuation Act 1937 grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment.

Power to grant allowances or gratuities in certain cases.

12 & 13 Geo. 5. c. 59.
1 Edw. 8. & 1 Geo. 6. c. 68.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

143. It shall be lawful for the Council—

Provision of lectures.

- (a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Council think fit and to let such rooms and to make reasonable charges for admission to such lectures; and
- (b) to provide suitable rooms for art exhibitions and to permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

Provided that the sum to be expended by the Council in any one year on the provision of lectures shall not exceed

PART XI.
—cont.

the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one-third of a penny in the pound in addition to any moneys received by the Council under the provisions of this section.

Power to
establish
information
bureaux.

144. The Council may establish and maintain or may subscribe towards the establishment and maintenance of an information bureau or information bureaux in the district for the purpose of supplying information with regard to the district and neighbourhood and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or bureaux or for information supplied by means thereof.

PART XII.

GENERAL.

Restriction
on right to
prosecute.

145. Section 298 of the Public Health Act 1936 shall apply to offences created by or under this Act as if they were offences created by or under that Act except that the said section shall not apply to those created by or under Part II (Electricity) or by or under the sections of this Act of which the marginal notes are—

“ Ejection of steam and waste gas to annoyance of public ”; and
“ Byelaws as to pleasure fairs.”

As to appeals.

146.—(1) Any person aggrieved by any requirement refusal or other decision of the Council or of any officer thereof under Part IV (Streets and buildings) Part V (Sewers drains &c.) Part VI (Infectious disease and sanitary provisions) or Part VII (Human food) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Council shall not execute such work or take such action; and

(c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Council effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

147.—(1) As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be— Byelaws.

(a) in the case of byelaws under Part II (Electricity) of this Act the Electricity Commissioners;

(b) in the case of byelaws made under the section of this Act of which the marginal note is "Byelaws as to pleasure fairs" the Secretary of State;

(c) in all other cases the Minister.

PART XII.
—cont.

(2) The Electricity Commissioners may give directions that the notice referred to in subsection (3) of the said section 250 shall in the case of the byelaws referred to in paragraph (a) of subsection (1) of this section also be given in one or more newspapers circulating outside the area to which the byelaws apply.

Compensation
how to be
determined.

148. When any compensation costs damages or expenses is or are by this Act or by any local Act or Order for the time being in force in the district directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Public Health Act 1936.

In executing
works for
owner Council
liable for
negligence
only.

149. Whenever the Council the surveyor or the sanitary inspector under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses payable by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Apportion-
ment of
expenses in
case of joint
owners.

150. Where under the provisions of this Act or any local Act in force in the district the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Damages and
charges to be
settled by
court.

151. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

152. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

PART XII.
—cont.

Breach of
conditions of
consent of
Council.

153. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any local Act or Order for the time being in force applying to the Council as if the same were re-enacted therein.

Application of
section 265 of
Public Health
Act 1875.

154. The Minister the Minister of Fuel and Power and the Minister of Transport may hold such inquiries as they consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Local Government Act 1933 shall apply accordingly.

Inquiries.

155.—(1) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Application of
provisions of
Public Health
Act 1936.

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 293 (Recovery of expenses &c.);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 299 (Inclusion of several sums in one complaint &c.);

Section 304 (Judges and justices not to be disqualified by liability to rates);

Section 328 (Powers of Act to be cumulative).

(2) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable to Part IV (Streets and

PART XII.
—cont.

buildings) Part V (Sewers drains &c.) Part VI (Infectious disease and sanitary provisions) and Part VII (Human food) of this Act (that is to say):—

- Section 277 (Power of councils to require information as to ownership of premises);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 295 (Power of local authority to grant charging orders);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925).

Commence-
ment of certain
provisions of
this Act.

156.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Council of which date public notice shall be given by the Council by advertisement in one or more local newspapers circulating in the district. Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement. Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the sections of this Act of which the marginal notes are—

- “ Parents &c. to notify certain diseases ”;
- “ Restrictions on attendance at schools and places of assembly ”;
- “ Registration of hawkers of meat fish fruit and vegetables and premises ”;
- “ Notice of slaughter of animal unfit for food.”

(4) As respects any of the said provisions which requires the registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision comes into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) has made application in accordance with the provisions of this Act for such registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is “As to appeals.”

157. The provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

Saving for
Town and
Country Plan-
ning Acts &c.
22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 29.
7 & 8 Geo. 6.
c. 47.

158. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Saving for in-
dictments &c.

159. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Crown rights.

160. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council in the first instance out of the general rate fund and general rate but ultimately out of moneys to be borrowed under the authority of this Act for that purpose.

Costs of Act.

The SCHEDULE referred to in the foregoing Act.

PROVISIONS AS TO COUNCIL BONDS.

1. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than seven years as the Council may determine.

2. (a) Bonds may be issued at such price and at such rates of interest as the Council may from time to time determine Provided that bonds shall not be issued at a price lower than par except with the consent of the Minister.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Council.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Council on or before the date for repayment specified in the certificate issued in respect of the bond.

3. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the Town Hall Long Eaton on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

4.—(1) The treasurer of the Council shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars:—

(a) The name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided;

(b) The date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

5.—(1) The Council shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Council on the production thereof may cancel it and issue a new certificate in lieu thereof.

- (3) If a certificate is lost or destroyed the Council on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.
- (4) An entry of the issue of a substituted certificate shall be made in the register.
- (5) A certificate shall be in the following form or in a form substantially to the like effect:—
- No.....

URBAN DISTRICT OF LONG EATON.

LONG EATON COUNCIL BONDS.

— per centum Long Eaton Council bond repayable at par on the19..... at the Town Hall Long Eaton.

This is to certify that.....
of..... is the registered
holder of a Council bond for.....pounds (£.....)
issued by the urban district council of Long Eaton under the Long
Eaton Urban District Council Act 1946 at.....

The common seal of the urban
district council of Long Eaton
was hereunto affixed in the
presence of

6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Council shall not prevent the holder of the bond from disposing of and transferring the bond.
- 7.—(1) The transfer of a Council bond shall be by deed in the following form or in a form substantially to the like effect:—

FORM OF DEED OF TRANSFER.

LONG EATON COUNCIL BONDS.

I in
consideration of the sum of
paid by
(hereinafter called "the transferee") do hereby assign and transfer
to the transferee
To hold unto the transferee his executors administrators and assigns
subject to the several conditions on which I held the same
immediately before the execution hereof and I the transferee do
hereby agree to accept and take the said.....
.....subject to the conditions aforesaid

As witness our hands and seals thisday
of.....in the year of our Lord one thousand nine hundred
and.....

(2) A bond may be transferred in whole or in part so however that any part transferred shall not be for an amount other than an amount for which a bond may be issued by the Council.

(3) The deed of transfer shall be delivered to and retained by the Council and the Council shall enter a note thereof in a book to be called "the Register of Transfers of Long Eaton Council Bonds" and shall endorse on the deed of transfer a notice of that entry.

(4) The Council shall upon receipt of the deed of transfer duly executed and properly stamped together with the certificate issued in respect of the bond enter the name of the transferee in the register and shall issue a new certificate or certificates to the transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered to the Council as aforesaid the Council shall not be affected by the transfer and the transferee shall not be entitled to receive any payment of interest on the bond.

(6) The Council before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

• 8.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Council may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Council shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Council the Council shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

9. The Council shall not be required to pay any executors or administrators any interest on bonds held by their testator or intestate until the probate of the will or the letters of administration has or have been left with the Council for registration.

10. The Council before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

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